

Terms and Conditions of Use

eThekwini Municipality Design Rainfall Data Website

Website: <https://edre.ethekwinifews.durban/>

1. Introduction

These Terms and Conditions govern access to and use of the eThekwini Municipality Design Rainfall Data Website ("the Website"), including all rainfall datasets, storm analysis tools, uploaded data processing services, downloadable content, visualisations, and associated services provided by eThekwini Metropolitan Municipality ("the Municipality", "we", "us", or "our").

By accessing or using the Website, the User agrees to comply with and be bound by these Terms and Conditions. If the User does not agree to these Terms, the User must immediately discontinue use of the Website.

2. Definitions

For purposes of these Terms:

- **Website** means the Design Rainfall Data website, applications, tools, calculators, datasets, and associated services.
- **Design Rainfall Data** means rainfall information, design storm values, intensity-duration-frequency (IDF) data, temporal distributions, rainfall analyses, storm classifications, and related hydrological datasets.
- **Storm Identification Tool** means the functionality allowing Users to upload rainfall records for automated storm identification and analysis.
- **User Data** means any rainfall records, files, datasets, or information uploaded by a User.
- **User** means any person or organisation accessing or using the Website.

3. Purpose of the Website

The Website is intended to provide rainfall-related information and analytical tools for research, engineering, planning, educational, operational, and informational purposes.

The Website does not constitute engineering certification, professional advice, flood forecasting, or regulatory approval.

Users remain solely responsible for:

- Verifying all outputs and calculations;
- Applying professional engineering judgement;
- Ensuring suitability for intended use.

4. Availability of Services

The Municipality provides the Website on an “as available” and “as is” basis.

The Municipality does not guarantee:

- Continuous availability of the Website;
- Uninterrupted access;
- Error-free operation;
- Permanent availability of datasets or tools.

The Municipality reserves the right to:

- Modify, suspend, restrict, or discontinue any service;
- Update rainfall datasets;
- Change methodologies, algorithms, or outputs;
- Remove uploaded data or inactive accounts.

5. Accuracy and Reliability of Data

Rainfall data, design storm information, analytical outputs, and generated results may contain inaccuracies, assumptions, omissions, delays, or errors.

The Municipality makes no representations or warranties regarding:

- Accuracy;
- Completeness;
- Reliability;
- Suitability for a specific purpose;
- Fitness for engineering, legal, or regulatory use.

Users acknowledge that:

- Storm identification results are automated analytical outputs;
- Outputs may vary depending on uploaded data quality and formatting;
- Independent verification is required before reliance on any result.

The User shall not be entitled to institute any claim or legal proceedings against eThekweni Metropolitan Municipality arising from or connected with the use of the Website, uploaded data, analytical outputs, or rainfall datasets.

6. User Uploaded Data

6.1 Ownership of Uploaded Data

Users retain ownership of User Data uploaded to the Website.

By uploading User Data, the User grants the Municipality a limited, non-exclusive right to:

- Process uploaded files;
- Store temporary processing data;
- Generate analytical outputs;
- Improve system functionality and diagnostics.

6.2 User Responsibilities

Users warrant that:

- They have lawful authority to upload the data;
- Uploaded files do not infringe third-party rights;
- Uploaded content does not contain malicious software or harmful code.

Users are solely responsible for:

- Data accuracy;
- File integrity;
- Maintaining backups of uploaded data.

6.3 Data Retention

The Municipality may:

- Temporarily store uploaded data for processing purposes;
- Delete uploaded files automatically after processing;
- Retain anonymised processing logs for system administration and auditing.

The Municipality is under no obligation to permanently retain User Data.

7. Acceptable Use

Users may not:

- Attempt unauthorised access to systems or infrastructure;
- Interfere with Website security or operations;
- Upload malicious files or harmful software;
- Use automated systems that negatively impact performance;
- Reverse engineer or manipulate analytical methodologies;
- Use the Website for unlawful or fraudulent purposes.

8. Intellectual Property

Unless otherwise stated, all Website content, rainfall datasets, algorithms, graphics, software, reports, and analytical methodologies remain the property of eThekweni Metropolitan Municipality or its licensors.

Users may:

- Use the data for lawful engineering, educational, research, and planning purposes;
- Reference data with proper attribution.

Users may not:

- Misrepresent outputs as certified engineering results;
- Sell or commercially redistribute datasets without written permission;
- Claim ownership of Municipality intellectual property.

Recommended attribution:

“Source: eThekwini Municipality Design Rainfall Data Website”

9. Limitation of Liability

To the fullest extent permitted by applicable law, the User hereby releases and discharges eThekwini Metropolitan Municipality, its affiliates, employees, officials, contractors, agents, and service providers from any and all claims, damages, causes of action, liabilities, losses, costs, or expenses arising from or connected with:

- Access to or use of the Website;
- Uploaded User Data;
- Storm identification outputs;
- Rainfall analyses or generated results;
- Reliance on rainfall datasets or analytical tools;
- Errors, interruptions, delays, omissions, or inaccuracies.

The Municipality shall not be liable for any direct, indirect, incidental, consequential, punitive, or special damages, including financial loss, engineering losses, project delays, business interruption, or damages arising from reliance on analytical outputs, whether arising in contract, delict (including negligence), warranty, strict liability, or otherwise, and irrespective of fault, to the fullest extent permitted by law.

All use of the Website and generated outputs is entirely at the User's own risk.

10. Indemnity

Users agree to indemnify and hold harmless eThekwini Metropolitan Municipality, its affiliates, employees, officials, contractors, agents, and service providers against any claims, damages, losses, liabilities, costs, or expenses arising from:

- Misuse of the Website;
- Uploaded User Data;
- Violation of these Terms;
- Reliance placed on generated outputs;
- Disclosure or redistribution of Website outputs or datasets to third parties.

The Municipality accepts no liability to third parties who receive or rely upon any Website outputs, datasets, or analyses distributed by a User.

11. Privacy and Data Protection

The Municipality may collect and process:

- Uploaded rainfall files;
- Technical access information;
- IP addresses;
- Usage logs;
- User registration information.

Personal information will be processed in accordance with applicable South African legislation, including the Protection of Personal Information Act (POPIA).

12. Amendments

The Municipality may amend these Terms and Conditions at any time.

Updated Terms become effective upon publication on the Website.

Continued use of the Website constitutes acceptance of the revised Terms.

13. Governing Law

These Terms and Conditions shall be governed by the laws of the Republic of South Africa.

Any disputes arising from use of the Website shall be subject to the jurisdiction of the South African courts.

14. Contact Information

eThekweni Municipality

Roads and Infrastructure Maintenance

Coastal Stormwater Catchment Management: Engineering Services and Records (ESR)

Mr Gerrard Smith

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Senior Manager ESR

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Forecast Early Warning Systems (FEWS) Team Lead

Disclaimer

The Design Rainfall Data Website, including all rainfall datasets, storm identification tools, analytical outputs, visualisations, and downloadable information, is provided by eThekweni Metropolitan Municipality for informational, research, planning, and engineering support purposes only.

The Municipality makes no representations or warranties, whether express or implied, regarding the accuracy, completeness, reliability, suitability, or availability of any data, calculations, analyses, or generated outputs made available through the Website.

Storm identification results and analytical outputs are generated automatically based on User-uploaded data and predefined analytical methodologies. Results may vary depending on the quality, completeness, structure, and accuracy of uploaded rainfall records.

The Website does not provide certified engineering advice, professional sign-off, flood forecasting, or regulatory approval. Users are solely responsible for independently verifying all outputs, calculations, and analyses before relying on them for engineering, operational, legal, financial, or planning purposes.

Use of the Website, uploaded data, and generated outputs is entirely at the User's own risk. The Municipality accepts no liability for any direct, indirect, incidental, consequential, or special loss or damage arising from the use of, reliance on, or inability to access the Website or its outputs.

By using this Website, Users acknowledge and agree to the applicable Terms and Conditions of Use.

View Terms and Conditions:

[Terms and Conditions of Use](#)